

**CERTIFICATE OF INTERESTED PERSONS AND CORPORATE
DISCLOSURE STATEMENT**

Pursuant to Federal Rule of Appellate Procedure 26.1 and Eleventh Circuit Rule 26.1-1, Respondent Securities and Exchange Commission states that the following listed persons and entities have an interest in the outcome of this case:

- 1) Alternative Investment Management Association, Amicus.
- 2) Altman, Jennifer G., Pillsbury Winthrop Shaw Pittman LLP, counsel for NYSE Intervenors.
- 3) American Free Enterprise Chamber of Commerce, Amicus.
- 4) American Securities Association, Petitioner.
- 5) ArentFox Schiff LLP, counsel for Intervenors Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc., and Cboe Exchange, Inc.
- 6) Ashbrook Byrne Kresge LLC, counsel for Amici James Overdahl and S.P. Kothari.
- 7) Baltz, Brian J., counsel for Amicus Future Industry Association.
- 8) Barbero, Megan, counsel for Respondent Securities and Exchange Commission.
- 9) Barr, William P., counsel for amicus American Free Enterprise Chamber of Commerce.
- 10) Bash, John F., counsel for amici Senator Tom Cotton et al.
- 11) Berman, Ari M., Pillsbury Winthrop Shaw Pittman LLP, counsel for NYSE Intervenors.
- 12) Berry, Jonathan, counsel for amicus American Free Enterprise Chamber of Commerce.
- 13) Bird, Brenna, counsel for Amicus State of Iowa.

- 14) Blask, Ariel, counsel for Amicus Future Industry Association.
- 15) Boden, Anastasia, counsel for Amici Cato Institute and Investor Choice Advocates Network.
- 16) Borse Dubai Limited, owner of more than 10% of Nasdaq, Inc.'s shares.
- 17) BOX Exchange LLC, member and participant of Intervenor CAT LLC.
- 18) Boyle, Gregory, Jenner & Block LLP, counsel for Intervenor Consolidated Audit Trail, LLC.
- 19) Boyden Gray PLLC, counsel for Amicus American Free Enterprise Chamber of Commerce.
- 20) Bronni, Nicholas J., counsel for Amicus State of Arkansas.
- 21) Cato Institute, Amicus.
- 22) Carr, Chris, counsel for Amicus State of Georgia.
- 23) Cboe BYX Exchange, Inc., Intervenor and member and participant of Intervenor CAT LLC.
- 24) Cboe BZX Exchange, Inc., Intervenor and member and participant of CAT LLC.
- 25) Cboe C2 Exchange, Inc., Intervenor and member and participant of CAT LLC.
- 26) Cboe EDGA Exchange, Inc., Intervenor and member and participant of CAT LLC.
- 27) Cboe EDGX Exchange, Inc., Intervenor and member and participant of CAT LLC.
- 28) Cboe Exchange, Inc., Intervenor and member and participant of CAT LLC.
- 29) Cboe Global Markets, Inc. (BATS: CBOE), direct or indirect parent company of Intervenor Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc., and Cboe Exchange, Inc.

- 30) Chenoweth, Markham S., counsel for Amicus New Civil Liberties Alliance.
- 31) Citadel Securities GP LLC, parent company of Petitioner Citadel Securities LLC.
- 32) Citadel Securities LLC, Petitioner.
- 33) Coleman, Russell, counsel for Amicus Commonwealth of Kentucky.
- 34) Committee on Capital Markets Regulation, Amicus.
- 35) Commonwealth of Kentucky, Amicus.
- 36) Commonwealth of Virginia, Amicus.
- 37) Competitive Enterprise Institute, Amicus.
- 38) Conley, Michael A., counsel for Respondent Securities and Exchange Commission.
- 39) Connolly, J. Michael, Consovoy McCarthy PLLC, counsel for Petitioner American Securities Association.
- 40) Consolidated Audit Trail, LLC, Intervenor, a jointly owned limited liability company formed under Delaware state law through which the participants conduct the activities of the CAT NMS Plan.
- 41) Deutsch, Elizabeth, Jenner & Block LLP, counsel for Intervenor Consolidated Audit Trail, LLC.
- 42) Financial Industry Regulatory Authority, Inc., member and participant of Intervenor CAT LLC.
- 43) Fitch, Lynn, counsel for Amicus State of Mississippi.
- 44) Formela, John M., counsel for Amicus State of New Hampshire.
- 45) Francisco, Noel J., Jones Day, counsel for Petitioner Citadel Securities LLC.
- 46) Hardin, Tracey A., counsel for Respondent Securities and Exchange Commission.
- 47) Hilgers, Michael T., counsel for Amicus State of Nebraska.

- 48) Hopen, David A., Paul, Weiss, Rifkin, Wharton & Garrison LLP, counsel for Amici Securities Industry and Financial Markets Association et al.
- 49) Hoyt, Joshua T., Jones Day, counsel for Petitioner Citadel Securities LLC.
- 50) Flowers, Benjamin M., Ashbrook Byrne Kresge LLC, counsel for Amici James Overdahl and S.P. Kothari.
- 51) Future Industry Association, Amicus.
- 52) Gershengorn, Ian Heath, Jenner & Block LLP, counsel for Intervenor Consolidated Audit Trail, LLC.
- 53) Greenberg, Dan, counsel for Amicus Competitive Enterprise Institute.
- 54) Greenwalt, Paul, III, counsel for Intervenor Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc., and Cboe Exchange, Inc.
- 55) Griffin, Tim, counsel for Amicus State of Arkansas.
- 56) Intercontinental Exchange, Inc. (NYSE: ICE), indirect parent of NYSE Intervenors.
- 57) International Securities Exchange Holdings, Inc., sole LLC member of Intervenor Nasdaq GEMX LLC, Nasdaq ISE LLC, and Nasdaq MRX LLC.
- 58) Investment Company Institute, Amicus.
- 59) Investor AB (Nasdaq Stockholm: INVEB), owner of more than 10% of Nasdaq, Inc.'s shares.
- 60) Investor Choice Advocates Network, Amicus.
- 61) Investors' Exchange, LLC, member and participant of Intervenor CAT LLC.
- 62) Jackley, Marty, counsel for Amicus South Dakota.
- 63) Jacobs, Dylan L., counsel for Amicus State of Arkansas.

- 64) Jenner & Block LLP, counsel for Intervenor Consolidated Audit Trail, LLC.
- 65) Kastenbergs, Stephen J., Ballard Spahr LLP, counsel for Intervenor The Nasdaq Stock Market LLC, Nasdaq BX, Inc., Nasdaq GEMX, LLC, Nasdaq ISE, LLC, Nasdaq MRX, LLC, and Nasdaq PHLX LLC.
- 66) Katsiff, Timothy D., Ballard Spahr LLP, counsel for Intervenor The Nasdaq Stock Market LLC, Nasdaq BX, Inc., Nasdaq GEMX, LLC, Nasdaq ISE, LLC, Nasdaq MRX, LLC, and Nasdaq PHLX LLC.
- 67) Kennedy, Jordan A., counsel for Respondent Securities and Exchange Commission.
- 68) Knudsen, Austin, counsel for Amicus State of Montana.
- 69) Kobach, Kris W., counsel for Amicus State of Kansas.
- 70) Kothari, S.P., Amicus.
- 71) Kumar, Neal, counsel for Amicus Future Industry Association.
- 72) Labrador, Raúl R., counsel for Amicus State of Idaho.
- 73) Lantieri, Paul, Ballard Spahr LLP, counsel for Intervenor The Nasdaq Stock Market LLC, Nasdaq BX, Inc., Nasdaq GEMX, LLC, Nasdaq ISE, LLC, Nasdaq MRX, LLC, and Nasdaq PHLX LLC.
- 74) Little, Margaret A., counsel for Amicus New Civil Liberties Alliance.
- 75) Lipshutz, Brian M., Paul, Weiss, Rifkin, Wharton & Garrison LLP, counsel for Amici Securities Industry and Financial Markets Association et al.
- 76) Long-Term Stock Exchange, Inc., member and participant of Intervenor CAT LLC.
- 77) Lucas, Brinton, Jones Day, counsel for Petitioner Citadel Securities LLC.
- 78) MacLean, Matthew J., Pillsbury Winthrop Shaw Pittman LLP, counsel for NYSE Intervenor.
- 79) Managed Funds Association, Amicus.

- 80) Marshall, Jonathan J., Jenner & Block LLP, counsel for Intervenor Consolidated Audit Trail, LLC.
- 81) Marshall, Steve, counsel for Amicus State of Alabama.
- 82) Matro, Daniel E., counsel for Respondent Securities and Exchange Commission.
- 83) MEMX LLC, member and participant of Intervenor CAT LLC.
- 84) Miami International Securities Exchange LLC, member and participant of Intervenor CAT LLC.
- 85) MIAX Emerald, LLC, member and participant of Intervenor CAT LLC.
- 86) MIAX PEARL, LLC, member and participant of Intervenor CAT LLC.
- 87) Michel, Christopher G., Quinn Emanuel Urquhart & Sullivan, LLP, counsel for amici Senator Tom Cotton et al.
- 88) Miyares, Jason, counsel for Amicus Commonwealth of Virginia.
- 89) Modern Markets Initiative, Inc., sponsor of funding disclosed pursuant to Rule 29(a)(4)(E) of the Federal Rules of Appellate Procedure.
- 90) Molzberger, Michael, ArentFox Schiff LLP, counsel for Intervenor Cboe BYX Exchange, Inc., Cboe BZX Exchange, Inc., Cboe EDGA Exchange, Inc., Cboe EDGX Exchange, Inc., Cboe C2 Exchange, Inc., and Cboe Exchange, Inc.
- 91) Montgomery, Sophia W., Jenner & Block LLP, counsel for Intervenor Consolidated Audit Trail, LLC.
- 92) Moody, Ashley, counsel for Amicus State of Florida.
- 93) Morris, Andrew J., counsel for Amicus New Civil Liberties Alliance.
- 94) Morrissey, Patrick, counsel for Amicus State of West Virginia.
- 95) Murrill, Liz, counsel for Amicus State of Louisiana.
- 96) Nabors, David A., Quinn Emanuel Urquhart & Sullivan, LLP, counsel for amici Senator Tom Cotton et al.
- 97) Nasdaq BX, Inc., Intervenor.

- 98) Nasdaq GEMX, LLC, Intervenor.
- 99) Nasdaq, Inc. (Nasdaq: NDAQ), sole owner of LLC interest in The Nasdaq Stock Market LLC and Nasdaq PHLX LLC and parent company of Nasdaq BX, Inc.
- 100) Nasdaq ISE, LLC, Intervenor.
- 101) Nasdaq MRX, LLC, Intervenor.
- 102) Nasdaq PHLX LLC, Intervenor.
- 103) New Civil Liberties Alliance, Amicus.
- 104) New York Stock Exchange LLC, Intervenor.
- 105) NYSE American LLC, Intervenor.
- 106) NYSE Arca, Inc., Intervenor.
- 107) NYSE Chicago, Inc., Intervenor.
- 108) NYSE National, Inc., Intervenor.
- 109) Oliwenstein, David, Pillsbury Winthrop Shaw Pittman LLP, counsel for NYSE Intervenor.
- 110) Orr, Caleb, Boyden Gray PLLC, counsel for Amicus American Free Enterprise Chamber of Commerce.
- 111) Overdahl, James, Amicus.
- 112) Paul, Weiss, Rifkin, Wharton & Garrison LLP, counsel for Amici Securities Industry and Financial Markets Association et al.
- 113) Paxton, Ken, counsel for Amicus State of Texas.
- 114) Phillips, David, Jones Day, counsel for Petitioner Citadel Securities LLC.
- 115) Quinn Emanuel Urquhart & Sullivan, LLP, counsel for Amici Senator Tom Cotton et al.
- 116) Rabbitt, Brian C., Jones Day, counsel for Petitioner Citadel Securities LLC.

- 117) Reisner, Lorin L., Paul, Weiss, Rifkin, Wharton & Garrison LLP, counsel for Amici Securities Industry and Financial Markets Association et al.
- 118) Representatives Mark Alford, Don Bacon, Michael Collins, Scott Fitzgerald, French Hill, Barry Loudermilk, Alex X. Mooney, Ralph Norman, John Rose, Keith Self, Randy Weber, and Steve Womack, Amici.
- 119) Reyes, Sean, counsel for Amicus State of Utah.
- 120) Rokita, Theodore E., counsel for Amicus State of Indiana.
- 121) Roth, Yaakov M., Jones Day, counsel for Petitioner Citadel Securities LLC.
- 122) Schulp, Jennifer, counsel for Amici Cato Institute and Investor Choice Advocates Network.
- 123) Schwartz, Yishai, Paul, Weiss, Rifkin, Wharton & Garrison LLP, counsel for Amici Securities Industry and Financial Markets Association et al.
- 124) Securities Industry and Financial Markets Association, Amicus.
- 125) Senator Tom Cotton, John Boozman, Mike Braun, Kevin Cramer, Steve Daines, Bill Hagerty, John Kennedy, Jerry Moran, Pete Ricketts, and Tim Scott, Amici.
- 126) Shanmugam, Kannon K., Paul, Weiss, Rifkin, Wharton & Garrison LLP, counsel for Amici Securities Industry and Financial Markets Association et al.
- 127) Skorup, Brent, counsel for Amici Cato Institute and Investor Choice Advocates Network.
- 128) Sobel, Zachary J., counsel for Amici Senator Tom Cotton et al.
- 129) State of Alabama, Amicus.
- 130) State of Arkansas, Amicus.
- 131) State of Florida, Amicus.
- 132) State of Georgia, Amicus.

- 133) State of Indiana, Amicus.
- 134) State of Iowa, Amicus.
- 135) State of Kansas, Amicus.
- 136) State of Louisiana, Amicus.
- 137) State of Mississippi, Amicus.
- 138) State of Missouri, Amicus.
- 139) State of Montana, Amicus.
- 140) State of Nebraska, Amicus.
- 141) State of New Hampshire, Amicus.
- 142) State of North Dakota, Amicus.
- 143) State of Ohio, Amicus.
- 144) State of South Carolina, Amicus.
- 145) State of South Dakota, Amicus.
- 146) State of Texas, Amicus.
- 147) State of Utah, Amicus.
- 148) State of West Virginia, Amicus.
- 149) The Nasdaq Stock Market LLC, Intervenor.
- 150) The Vanguard Group, Inc., owned 10% or more of Cboe Global Markets, Inc.'s common stock as of June 30, 2023.
- 151) Thoma Bravo UGP, LLC, owner of more than 10% of Nasdaq, Inc.'s shares.
- 152) Torridon Law PLLC, counsel for Amicus American Free Enterprise Chamber of Commerce.
- 153) Unikowsky, Adam, Jenner & Block LLP, counsel for Intervenor Consolidated Audit Trail, LLC.

- 154) United States Securities and Exchange Commission, Respondent.
- 155) Virtu Financial, Inc., Amicus.
- 156) Watkins, Devin, counsel for Amicus Competitive Enterprise Institute.
- 157) Wilson, Alan, counsel for Amicus State of South Carolina.
- 158) Wrigley, Drew H., counsel for Amicus State of North Dakota.
- 159) Yost, Dave, counsel for Amicus State of Ohio.



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December 19, 2024

David J. Smith, Clerk of Court
United States Court of Appeals for the Eleventh Circuit
56 Forsyth St., N.W.
Atlanta, GA 30303

Re: *Am. Secs. Ass'n et al. v. SEC* (No. 23-13396)

Dear Mr. Smith:

The en banc Fifth Circuit's 9-8 decision in *Alliance for Fair Board Recruitment v. SEC*, No. 21-60626 (Dec. 11, 2024) (*AFBR*), does nothing to bolster petitioners' untimely statutory authority challenge.

First, *AFBR* does not support petitioners' argument that the integration of regulatory data previously available from disparate sources into a single database implicates the major questions doctrine. The majority invoked that doctrine only as "confirm[ation]" of its interpretation of the statute's "ordinary meaning." Op. 31. Here, the ordinary meaning of the relevant Exchange Act provisions plainly encompasses the creation of a consolidated audit trail. SEC Br. 44-47; SEC Stay Opp. 11-12. Nor does *AFBR* diminish the significance of the lack of controversy surrounding CAT's creation. CAT did not emerge "through a process akin to adverse possession" (Op. 38), as petitioners imply. SROs and broker-dealers participated extensively in its development, and the overwhelming consensus supporting its creation (and absence of any dispute over authority) undermines petitioners' suggestion that CAT transforms the statute or the Commission's role.

Second, *AFBR* does not hold that the Commission's authority under Section 11A (15 U.S.C. 78k-1) is limited to "market-competition measures" that reduce "transaction costs." On the contrary, the majority recognized that "Congress gave SEC broad discretion to flesh out the contours of the [national market system]." Op. 27. The text and history of the 1975 amendments confirm that Congress also intended the Commission to use its authority to ensure the adequate regulation of that system. SEC Br. 44-47.

Finally, the Commission does not argue that its authority is limited only by “general references to the ‘public interest’ and ‘the protection of investors.’” Section 11A authorizes the Commission to “require [the SROs] to act jointly” only with respect to matters within the SROs’ “share[d] authority” under the Exchange Act, only in connection with the exercise of authority granted to the Commission elsewhere in the Act, and only in furtherance of specific findings and objectives. These are meaningful constraints, and the creation of CAT satisfies each of them. SEC Br. 44-47, 52-53; SEC Stay Opp. 11-12.

Respectfully submitted,

Tracey A. Hardin
Solicitor

/s/ Daniel E. Matro
Daniel E. Matro
Senior Appellate Counsel

Counsel for Respondent
Securities and Exchange Commission

cc: All Counsel Via CM/ECF